

practise it.

Terminology. Patents use certain words in certain ways, with different meanings. This part illustrates the meaning of those words.

Claims. This is an important part of the application, which defines the invention that is protected by the patent. The claims of a patent come at the end of the document, right after the detailed description of the invention. These are set forth as separately numbered paragraphs in a single-sentence format.

Understanding the patent information

For those unfamiliar with patents, a patent document may seem difficult to understand or even incomprehensible. Some guidelines may be helpful for the non-patentees to understand this composite document, which contains five main identifiable fields, including title, abstract, summary of the invention, figures and claims.

Title. The title is simply the heading of the invention explained in the patent or the introductory section stating the name, citizenship, residence of the applicant and the title of the invention. It appears as the heading on the first page of the specification. Somebody who is unfamiliar with patents should read the title and abstract, which will clearly specify the technical area/field of the invention.

Abstract. This is the next important part of the patent that talks about the essence of the invention. Readers usually read the abstract to know about the patent and the invention. Since this is the summary of the patent document, illustrated by a main diagram, it gives the readers a good understanding of the invention. A non-patentee or a person from a different background must read the abstract a number of times to get a good sense of the nature of the invention.

Summary of the invention. This section, preceding the description, indicates the nature and a statement

Since the aim of the summary is to notify the readers, particularly those interested in the invention, it is specific about the invention being claimed. Here the invention is described concisely to set out the exact nature and the purpose.

about the invention. The summary, though a near about repetition of the abstract, is still quite useful for a non-patentee as it includes some additional information about the patent. Since the aim of the summary is to notify the readers, particularly those interested in the invention, it is specific about the invention being claimed. Here the invention is described concisely to set out the exact nature and the purpose.

Figures. After learning about the invention and its nature, the reader can see the figures and diagrams used by the inventor to illustrate and explain the invention further. He has now a well-defined understanding about the invention and the patent, so he can easily match the invention with the figures, specifically the flow-charts. If the reader is impressed with the figures and wants more information about the invention, he can go through the detailed description of the relevant figures. Normally, the detailed description is explained with reference figures only.

Claims. This is the most important section of the patent document as it defines the invention that is protected by the patent. Most patents contain 10-20 claims, although there are some with only one claim and others with hundreds of claims. The claims provide guidance to competitors in steering clear of the patent, indicating the scope and bounds of the patent. The claims follow a set format with an unusual grammatical style that is sometimes difficult for non-patentees to understand. Most of the well-known company patents have very broad claims to protect their ideas/inventions. For example, automotive industries make perfect patent claims

to protect their ideas from their competitors.

Easy way to analyse patent

Due to a set format of writing a patent document, it always looks complicated, no matter how much the inventor tries to simplify the text. Normally, a patent contains minimum of five to eight pages, whereas it can be written in a single page after understanding the content of the patent. Is there any rule which states that patent applications must contain the same headings? Perhaps not, but there is a common procedure to write the patent application. This set format makes the patent document complex.

The following guidelines can make it easy for a non-patentee to analyse the patent:

1. Try to understand the invention using the above listed headings
2. After you understand it, try to write in your own way
3. Focus your concentration on the invention to understand it better
4. If some idea comes to your mind for enhancing that invention, note it down
5. Compare that idea with the patent claims
6. If you find your invention idea is already protected using claims, try to modify your invention idea in the same field
7. Analyse the invention from the disadvantage or limitation point of view
8. Don't spend much time on the cover page and background of the invention ●

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